

HOUSE No. 2115

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth I. Gordon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act clarifying the prevailing wage act to protect actions by the attorney general.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/13/2025</i>

HOUSE No. 2115

By Representative Gordon of Bedford, a petition (accompanied by bill, House, No. 2115) of Kenneth I. Gordon relative to the statute of limitations for certain prevailing wage act actions. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act clarifying the prevailing wage act to protect actions by the attorney general.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 27 of Chapter 149 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the word "27B" in line 68 and inserting in
3 place thereof the following:- 27H

4 SECTION 2. Section 27 of Chapter 149 of the General Laws is hereby further amended
5 by inserting after the word "benefits" in line 100 the following:-

6 ;provided, however, that the 3 year limitation period shall be tolled from the date that the
7 employee or a similarly situated employee files a complaint with the attorney general alleging a
8 violation of any of these sections until the date that the attorney general issues a letter
9 authorizing a private right of action or the date that an enforcement action by the attorney general
10 becomes final.

11 SECTION 3. Section 27F of Chapter 149 of the General Laws is hereby amended by
12 inserting after the word "benefits" in line 31 the following:-

13 ;provided, however, that the 3 year limitation period shall be tolled from the date that the
14 employee or a similarly situated employee files a complaint with the attorney general alleging a
15 violation of any of these sections until the date that the attorney general issues a letter
16 authorizing a private right of action or the date that an enforcement action by the attorney general
17 becomes final.

18 SECTION 4. Section 27G of Chapter 149 of the General Laws is hereby amended by
19 inserting after the word "benefits" in line 21 the following:-

20 ;provided, however, that the 3 year limitation period shall be tolled from the date that the
21 employee or a similarly situated employee files a complaint with the attorney general alleging a
22 violation of any of these sections until the date that the attorney general issues a letter
23 authorizing a private right of action or the date that an enforcement action by the attorney general
24 becomes final.

25 SECTION 5. Section 27H of Chapter 149 of the General Laws is hereby amended by
26 inserting after the word "benefits" in line 29 the following:-

27 ;provided, however, that the 3 year limitation period shall be tolled from the date that the
28 employee or a similarly situated employee files a complaint with the attorney general alleging a
29 violation of any of these sections until the date that the attorney general issues a letter
30 authorizing a private right of action or the date that an enforcement action by the attorney general
31 becomes final.